

Sanjeev Kumar Tiwari v. State of U.P. and 3 Others

High Court of Judicature at Allahabad · Division Bench · 20 January 2023 · WRIT - C No. 1981 of 2023 · **Writ disposed; objections to be decided under Supply Code; no coercion pending.**

HEADNOTE

Writ against a provisional assessment and a consequential electricity bill disposed of on the Electricity Department's statement that the consumer's objections would be decided under the procedure in the Electricity Supply Code, 2005, and that no coercive action would be taken until that decision.

FACTUAL SUMMARY

Sanjeev Kumar Tiwari challenged a provisional assessment dated 1 July 2022 and an electricity bill dated 16 November 2022 raised by respondent no. 4 for electricity dues. He had already filed objections to the provisional assessment. His case was that the Electricity Department was about to take coercive measures without deciding those objections. Counsel for the Department answered that complaint in Court.

HOLDING-UNITS

HOLDING-UNIT · Electricity Supply Code, 2005

Objections to provisional assessment before coercive recovery

HOLDING

On the Electricity Department's statement that objections to the provisional assessment would be decided in accordance with the procedure prescribed under the Electricity Supply Code, 2005, and that no coercive action would be taken until that decision, the writ challenging the assessment dated 1 July 2022 and the bill dated 16 November 2022 was disposed of in those terms. ¶ 1

FLAG No clause number is stated; the order refers only to the procedure prescribed under the Electricity Supply Code, 2005.

PRINCIPLE TAGS

UP-2005::objections-to-provisional-assessment The Court accepted the Department's statement that objections to the provisional assessment would be decided under the Supply Code, 2005, with no coercive action until then, and disposed of the writ in those terms without ruling on the assessment or the bill. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE PROVISIONAL ASSESSMENT DATED 1 JULY 2022 AND THE ELECTRICITY BILL DATED 16 NOVEMBER 2022

Left to the decision of the petitioner's objections under the procedure prescribed by the Electricity Supply Code, 2005.

¶ 1